SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Special Leave Petition (Civil) No. 25590 of 2014 (YEAR: 2017)

CORAM: DIPAK MISRA, A.K. SIKRI, A.M. KHANWILKAR, D.Y. CHANDRACHUD, ASHOK BHUSHAN

National Insurance Co. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Pranay Sethi
... Respondent(s)

Acts Referred:	Motor Vehicles Act, 1988
Sections:	Section 166 Motor Vehicles Act, Section 168 Motor Vehicles Act

JUDICIAL HEADNOTE & SUMMARY

Five-judge constitution bench settled future prospects percentage additions (self-employed and salaried) and fixed compensation awards under conventional heads.

RATIO DECIDENDI

The Court held that: Five-judge constitution bench settled future prospects percentage additions (self-employed and salaried) and fixed compensation awards under conventional heads. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in National Insurance Co. Ltd. v. Pranay Sethi (Special Leave Petition (Civil) No. 25590 of 2014) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Motor Vehicles Act, 1988, particularly Section 166 Motor Vehicles Act, Section 168 Motor Vehicles Act. Five-judge constitution bench settled future prospects percentage additions (self-employed and salaried) and fixed compensation awards under conventional heads.

OPERATIVE ORDER

ORDER: Decided